Article Eleven

The national government shall take legislative, fiscal, taxational, and financial measures that are necessary to implement fundamental policies concerning space use and exploitation.

(Maintenance of Government Organizations)

Article Twelve

The national government shall make efforts to maintain its administrative organizations and to improve its administrative operations when it implements policies and measures concerning space use and exploitation.

CHAPTER TWO

FUNDAMENTAL POLICIES AND MEASURES

(Utilization of Artificial Satellites for Improving the People's Living Standard)

Article Thirteen

The national government shall take up policies and measures necessary to maintain and promote information communication networks, remote-sensing information systems, positioning information systems. These networks and systems shall be stable using artificial satellites in order to improve our citizens' living standards, to form a safe and secured society, and to remove any kind of threats to our lives, such as natural disasters and poverty.

(Peace and Security in Domestic and International Society)

Article Fourteen

The national government shall take up policies and measures necessary to promote space use and exploitation which helps us keep peace and security in our homeland and the whole world.

(Independent Launches of Artificial Satellites)

Article Fifteen

It is significant that our country has capacities to independently develop, launch, trace and operate artificial satellites. Recognizing this, the national government shall take up policies and measures necessary to promote research and development of machines (including components thereof) and technologies; to maintain launch sites and facilities; and to obtain frequencies our country may use in the course of space use and exploitation.

(Space Use and Exploitation Promoted by Private Business Entities)

Article Sixteen

Recognizing that private business entities play essential roles in space use and exploitation, the national government shall promote private business activities (including research and development) concerning space use and exploitation, and encourage our country's space industry and ancillary industries to enhance their technologies and international competitiveness. When the government carry out space use and exploitation by themselves, they need to make the most of abilities of private business entities and make a plan to purchase goods and services from the private sector. The national government also shall take up policies and measures necessary to maintain launch sites (i.e., locations from which a launch takes place) and any other facilities for experiments and research; to enable private business entities to make effective use of the results of research on space use and exploitation conducted by the government; to promote setting up businesses which use and practice the results of research on space use and exploitation; and to make it easier for the private sector to invest space industries in terms of taxes and finance.

(Maintenance and Improvement of Reliability)

Article Seventeen

Recognizing that it is significant to maintain and improve reliability of technologies concerning space use and exploitation,

the national government shall take up policies and measures necessary to promote basic research and develop fundamental technologies on space use and exploitation.

(Promotion of Cutting-Edge Space Use and Exploitation)

Article Eighteen

The national government shall take up policies and measures necessary to promote academic research concerning cutting-edge space use and exploitation, and space science including space exploration.

(Promotion of International Cooperation)

Article Nineteen

The national government shall positively play our country's roles in the field of space use and exploitation, and increase our country's interests in the international society. The national government also shall take up policies and measures necessary to strengthen international cooperation concerning space use and exploitation, such as forming an international league for research and development and sharing technologies with other countries, and to make our country's space use and exploitation understood more deeply by foreign countries.

(Protection of Environment)

Article Twenty

The national government shall take up policies and measures necessary to promote space use and exploitation in harmony with environment.

Section 2—The national government shall strive themselves to cooperate with other countries for protection of space environment.

(Development of Human Resources)

Article Twenty One

In order to promote space use and exploitation, the national government shall take up policies and measures necessary to maintain and develop human resources involved in space use and exploitation, intimately cooperating with universities and private business entities.

(Promotion of Education)

Article Twenty Two

The national government shall take up policies and measures necessary to promote education and strengthen public relations concerning space use and exploitation, so as to deepen the citizens' appreciation and understanding of space use and exploitation.

(Information Control Regarding Space Use and Exploitation)

Article Twenty Three

Since space use and exploitation has unique characteristics, the national government shall take up policies and measures necessary to properly manage and control information regarding space use and exploitation.

CHAPTER THREE

OUTER SPACE MASTER PLAN

Article Twenty Four

The Outer Space Exploitation Strategy Headquarters shall formulate a fundamental plan concerning space use and exploitation (hereinafter referred to as the "Outer Space Master Plan"), in order to promote policies and measures concerning space use and exploitation in a planned and comprehensive manner.

Section 2—The Outer Space Master Plan shall contain:

a) basic directions with regard to promotion of space use and exploitation;

b) policies and measures concerning space use and exploitation which the national government shall carry out in a planned and comprehensive manner;

c) other than the preceding a) and b), whatever is necessary for the national government to promote the policies and measures concerning space use and exploitation in a planned and comprehensive manner.

Section 3—In principle, the Outer Space Master Plan shall establish concrete goals for the policies and measures described therein, and provide the time period for attaining the goals.

Section 4—When the Outer Space Master Plan has been formulated per Section 1 of this Article, the Outer Space Exploitation Strategy Headquarters shall officially announce it without delay via the Internet and any other appropriate means.

Section 5—The Outer Space Exploitation Strategy Headquarters, at an appropriate time, shall conduct a survey on progress toward the goals described in Section 3 of this Article, and shall officially announce the survey result via the Internet and any other appropriate means.

Section 6—Considering the progress in space use and exploitation as well as the effect of the policies and measures carried out by the national government with regard to space use and exploitation, the Outer Space Exploitation Strategy Headquarters, at an appropriate time, shall review the Outer Space Master Plan, and if necessary, make changes therein. Section 4 of this Article mutatis mutandis applies to the changes made in Outer Space Master Plan.

Section 7—In order to obtain funds necessary to smoothly operate the Outer Space Master Plan, the government shall, every fiscal year, make efforts to take necessary steps, such as formulating a budget for the Outer Space Master Plan, as far as the country's financial situation permits.

CHAPTER FOUR

OUTER SPACE EXPLOITATION STRATEGY HEADQUARTERS

(Establishment)

Article Twenty Five

The Outer Space Exploitation Strategy Headquarters (hereinafter referred to as "the Headquarters") shall be established in the Cabinet so as to promote in a planned and comprehensive manner policies and measures concerning space use and exploitation.

(The Headquarters' Missions)

Article Twenty Six

The missions of the Headquarters are listed below:

a) drafting the Outer Space Master Plan and promoting to carry it out; and,

b) researching and discussing significant policies and measures concerning space use and exploitation other than Outer Space Master Plan, and promoting and arranging to carry them out.

(Composition)

Article Twenty Seven

The Headquarters is composed of the chief, deputy chiefs and other members of the Outer Space Exploitation Strategy Headquarters.

(The Chief of the Outer Space Exploitation Strategy Headquarters)

Article Twenty Eight

The Headquarters is headed by the chief of the Outer Space Exploitation Strategy Headquarters (hereinafter referred to as "the Chief"). The Prime Minister is assigned as the Chief.

Section 2—The Chief shall oversee all activities of the Headquarters, and direct and supervise its officials.

(Deputy Chiefs of the Outer Space Exploitation Strategy Headquarters)

Article Twenty Nine

The Headquarters has deputy chiefs of the Outer Space Exploitation Strategy Headquarters (hereinafter referred to as "the Deputy Chiefs"). Both the Chief Cabinet Secretary and the Minister of Outer Space Exploitation (i.e., a minister appointed by the Prime Minister who is in charge of assisting the Prime Minister with regard to space use and exploitation) are assigned as the Deputy Chiefs.

Section 2—The Deputy Chiefs shall assist the Chief.

(Members of the Outer Space Exploitation Strategy Headquarters)

Article Thirty

The Headquarters has members of the Outer Space Exploitation Strategy Headquarters (hereinafter referred to as "Members").

Section 2—Every minister of the Cabinet other than the Chief and the Deputy Chiefs is assigned as a Member.

(Documents Submission and Other Cooperation)

Article Thirty One

The Headquarters may call for documents, advice, explanation, and other cooperation which the Headquarters finds necessary for its missions, to affiliated government agencies, local public organizations, chiefs of independent administrative institutions which are stipulated by Independent Administrative Institutions Act (Law No. 103, 1999), and representatives of government-affiliated corporations established by or under specific laws which are governed by Article 4, Section 15 of General Affairs Ministry Act (Law No. 91, 1999).

Section 2—The Headquarters may call for cooperation which it finds particularly essential for its missions, to anyone other than entities listed in the previous section.

(Affairs)

Article Thirty Two

The Cabinet Secretariat conducts affairs of the Headquarters, and assistant deputy chief cabinet secretaries are assigned to direct the affairs.

(The Chief Minister)

Article Thirty Three

The Prime Minister is the chief minister who Cabinet Act (Law No.5, 1947) provides is in charge of affairs and activities of the Headquarters.

(Cabinet Orders)

Article Thirty Four

Cabinet orders may, if necessary, stipulate affairs and activities of the Headquarters other than those provided by this law.

CHAPTER FIVE

IMPROVEMENT OF LEGAL SYSTEMS CONCERNING OUTER SPACE ACTIVITIES

Article Thirty Five

The government shall improve legal systems in a planned, speedy and comprehensive manner by enacting laws regulating outer space activities and laws necessary to perform treaties and other international promises concerning space use and exploitation.

Section 2—The legal systems in the previous section shall be helpful to increase our country's interests in the interna-

tional society and to promote space use and exploitation in the private business sector.

Supplementary Provisions

(Date of Enforcement)

Article One

This law shall be enforced on the day designated by a government ordinance within three months from the day of this law's promulgation.

(Enacting Laws for The Cabinet Office to Conduct Secretarial Affairs of The Headquarters)

Article Two

Approximately one year after this law is enforced, the government shall enact laws and take other necessary steps so that the Cabinet Office can conduct secretarial affairs of the Headquarters.

(Reviewing the Japan Aerospace Exploration Agency)

Article Three

Approximately one year after this law is enforced, the government shall review the aims, functions and structures of the Japan Aerospace Exploration Agency and other agencies conducing space use and exploitation.

(Reviewing Administrative Organizations for Promoting Space Use and Exploitation Policies Comprehensively and integratively)

Article Four

The government shall deliberate how administrative organizations should be for promoting space use and exploitation policies comprehensively and integratively, and take necessary steps accordingly.

Grounds for Submitting This Bill

In order to promote in a planned and comprehensive manner the overall policies and measures concerning space use and exploitation, it is necessary to establish and realize the fundamental principles, and to clarify the government's responsibilities for space use and exploitation. It is also necessary to draft the Outer Space Master Plan and to create the Outer Space Exploitation Strategy Headquarters. These are the grounds for submitting this bill.

Supplementary Resolutions

Resolutions Regarding Promotion of Space Use and Exploitation

As the Fundamental Act of Outer Space is enforced, the government need to take into the surest consideration the following subject matters:

Section 1—Space use and exploitation shall be based on the pacifism under the Japanese Constitution, and shall be carried out in harmony with outer space environments and in order to improve not only our citizens' living standards but also interests in the whole world.

Section 2—The Outer Space Exploitation Strategy Headquarters shall be established in the Cabinet. When the Headquarters, as a control center, promote in a planned and comprehensive manner policies and measures concerning space use and exploitation of our country, they shall make efforts to take enough opinions of space science experts and to have them reflected in the policies and measures.

Section 3—When the government set up the organization in the Cabinet Office which will conduct secretarial affairs of the Outer Space Exploitation Strategy Headquarters, they shall make efforts to promote strategically, comprehensively and integratively space use and exploitation policies, such as formulating the Outer Space Master Plan, enacting laws pertinent to space use and exploitation, and administering budgets for space use and exploitation.

In addition, the government should appoint as the head of the said organization a person who is free from special interests

of governmental organs, and able to make decisions from a broad view of things. Furthermore, the officials of the said organization shall not be appointed in favor of special governmental organs. Instead, they should be appointed widely and impartially from the Japan Aerospace Exploration Agency or other agencies, and private business entities conducing space use and exploitation.

Section 4—Before the organization in the Cabinet Office starts to conduct secretarial affairs of the Headquarters about one year after this law is enforced, the government shall deliberate from the future perspective how the said organization should be for promoting space use and exploitation policies comprehensively and integratively, and shall enact laws and take other necessary steps accordingly.

Besides, when the said organization in the Cabinet Office conducts secretarial affairs of the Headquarters, they shall do it integratively and strategically, keeping close contacts with relevant governmental organs.

Section 5—The Japan Aerospace Exploration Agency shall be administered in accordance with the Outer Space Master Plan, so as to realize the fundamental principles regarding outer space exploitation under this law. About one year after its enforcement, the government shall review the JAXA's aim, function, structure, scope of businesses, and ancillary administrative agencies, including the JAXA law.

In addition, around one year after this law takes effectiveness, the government shall study consolidation of some agencies pertinent to outer space exploitation.

Furthermore, the government shall study the aim and function of the Outer Space Exploitation Committee in relation to the Outer Space Exploitation Strategy Headquarters.

Section 6—In or around two years after this law is enforced, the government shall strive to enact laws regulating outer space activities in line with treaties and other international promises concerning space use and exploitation.

We, Committee on the Cabinet of House of Representatives and Committee on the Cabinet of House of Councilors, have resolved as mentioned above.

This is an unofficial translation of Iran's "Statute of the Iranian Space Agency". It is being offered to the readership of the JOURNAL OF SPACE LAW as a convenience.[1]

The Cabinet of the Islamic Republic of Iran in its meeting of June 11, 2005, according to proposal number 100/14310 dated 9 August 2004 of the Ministry of Communications and Information Technology and citing the Article 9 of the Law for Tasks and Authorizations of the Ministry of Communications and Information Technology approved on 10 December 2003 by the Parliament, passed the statute of the Iranian Space Agency as follows:

STATUTE OF THE IRANIAN SPACE AGENCY

Article 1- Aiming at implementing the approvals of the Space Supreme Council of Iran and the study, research, designing, engineering and conducting the issues of space service and remote sensing technologies, and strengthening the communication networks and space technology inside and out of the country, and collection of the sovereignty activities of the Iranian Remote Sensing Center and the Ministry of Communications and Information Technology, benefiting the facilities and human resource of the Department of Design, Engineering and Installation of Satellite Communications and Department of Maintenance of Satellite Communications both affiliated with

[1] Translated by Parviz Tarikhi (28 August 2008). The Persian version is available at http://www.itna.ir/archives/documents/010742.php. Mr. Tarikhi heads the Microwave Remote Sensing Department at the Mahdasht Satellite Receiving Station. He has been involved with the United Nations Committee on the Peaceful Uses of Outer Space (UNCOPUOS) since 2000, including as second vice-chair and rapporteur in 2004-06 of the committee bureau. Since 2001 he has co-chaired Action Team number 1 of UNISPACE-III with the mission "to develop a comprehensive worldwide environmental monitoring strategy". From 2004-07 he conducted the Office for Specialized International Co-operation of the Iranian Space Agency. He is also a freelance journalist and technical writer. Some of Mr. Tarikhi's writings may be found on the National Center for Remote Sensing, Air, and Space Law's website blog at http://rescommunis.wordpress.com.

the Telecommunications Company of Iran, the Iranian Space Agency which is briefly referred to as "Agency" in this Statute, is established.

Article 2- As a legal entity, the Agency is a financially independent official foundation affiliated with the Ministry of Communications and Information Technology.

Article 3- Agency's tasks and authorizations are as follows:

I. Pursuance and implementing the approvals of the Space Supreme Council,
II. Preparing and regulation of mid and long-term programs for country's space sector in cooperation with related institutions for proposing to the Space Supreme Council,
III. Study for policy making in designing, manufacturing, launching and using research and applied satellites and providing space services for proposing to the Space Supreme Council,
IV. Planning to conduct and develop of the peaceful uses of outer space and space technology, strengthening the national, regional and international communication networks by the state, cooperative and private sectors and monitoring their implementation at the framework of the policies approved by the Space Supreme Council,
V. Applied specific study, research and education in developing space science and technologies,
VI. Studying the requirements and implementing satellite and other space technology projects in the framework of the approvals of the Space Supreme Council,
VII. Contribution to the implementation of the regional and national satellite projects in the framework of the approvals of the Space Supreme Council,
VIII. Issuing the authorization for the space activities aiming at sustained and coordinated exploitation of space technologies and facilities including satellites, direct receiving and transmitting stations, and satellite control in the framework of the approvals of the Space Supreme Council,

IX. Cooperation with related clients for assessing the competence of non-governmental contractors and advisors for implementing space related executive and research issues in different parts of the country,

X. Representing, membership and attending related international and regional societies and unions aiming at protecting national interests in the framework of the regime's main policies and other laws and regulations,

XI. Implementing regional and international cooperation programs in space issues in the framework of the regime's main policies,

XII. Management and exploitation of satellite and orbital positions in coordination with responsible bodies and pursuing their international registration for optimum use of the space sources,

XIII. Preparing and formulating the regulations and statutes related to the tasks included in the Article 9 of the Law for Tasks and Authorizations of the Ministry of Communications and Information Technology approved in 2003, for proposing to the legal clients.

XIV. Establishing national archive and centralizing store, classification and updating of space data.

Nota Bene 1- The Agency is obliged to apply the highest capacity of the non-governmental sector in the framework of the policies of the Space Supreme Council for implementing its tasks and affairs.

Nota Bene 2- Distinguishing the security competence in the cases of the clauses VIII and IX in this Article will be the responsibility of the related clients.

Article 4- Agency's required credits will be provisioned and secured through the public funds and credits in the country's annual budget.

Nota Bene 1- The facilities, records, human resources and funds of the ongoing national and research projects in the Ministry of Communications and Information Technology is transferred to the Agency.

Nota Bene 2- By coordination of the Management and Planning Organization of Iran and in the framework of the annual budgets the Agency could use the assistance and other fund sources of the Ministry of Communications and Information Technology and its affiliated organizations and companies, and other institutions.

Article 5- The organizational chart of the Agency after formulating by the Agency and confirmation of the Management and Planning Organization of Iran will be effectual.

Article 6- The president of the Agency that is the Deputy Minister of Communications and Information Technology and the secretary of the Space Supreme Council at the same time, will be appointed by the Minister of Communications and Information Technology and will hold the highest executive position at the Agency.

Article 7- The president of the Agency is responsible for well implementing the affairs, protecting the rights, interests and assets of the Agency, and for managing the Agency and implementing the approvals of the Space Supreme Council will have full right and authorization in the framework of the regulations. He/she will represent the Agency before all legal authorities and real and legal entities with the right to depute the authorization to others, and he/she can delegate on his recognition and trust part of his/her authorization by the official notification to either of his/her deputies, managers or Agency's staff.

The Guardian Council according to the letter number 84/30/12612 dated 18 June 2005 passed this Statute.

Translated to English by: Parviz Tarikhi
10 July 2008

This is an unofficial translation of Iran's "Statute of the Iranian Space Agency". It is being offered to the readership of the JOURNAL OF SPACE LAW as a convenience.[1]

The Cabinet of the Islamic Republic of Iran in its meeting of June 16, 2008, according to proposal number 1/27560 dated 9 August 2007 of the Ministry of Communications and Information Technology and citing Article 9 of the Law for Tasks and Authorizations of the Ministry of Communications and Information Technology approved on December 10, 2003 by the Parliament of the Islamic Republic of Iran, passed the statute of the Iranian Space Agency as follows:

STATUTE OF THE IRANIAN SPACE AGENCY

Article 1- Aiming at implementing its legal tasks and the study, research, designing, engineering and conducting the issues of space service and remote sensing technologies, and strengthening the communication networks and space technology inside and out of the country, and collecting of the sovereignty activities of the Iranian Remote Sensing Center and the Ministry of Communications and Information Technology, benefiting the facilities and human resource of the Department of Design, Engineering and Installation of Satellite Communications and Department of Maintenance of Satellite Communications both affiliated with the Telecommunications Company of

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